

26STCV01163 26STCV01163

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Case Number: 26STCV01163 Hearing Date: September 17, 2026 Dept: 617

Dept.

617

Date:

9-17-26

Case

#: 26STCV01163

Trial

Date: 11-30-26

QUASH SERVICE

MOVING

PARTY: Specially Appearing Defendants, Sae Hyun Yang and Brooke Yang

RESPONDING

PARTY: Plaintiff, Kae-soon Choe

RELIEF

REQUESTED

Motion

to Quash Service of Summons

SUMMARY

OF ACTION

Plaintiff

Kae-soon Choe sued her pastor, Defendant Jun Ho Yang, alleging that Yang used her confidence in him to his own advantage. Plaintiff claims that in helping her sell her apartment, Yang diverted \$6.4 million of the net proceeds to his non-profit, Defendant The Christian Herald, Inc. Plaintiff alleges that she signed numerous documents presented by Yang based on his representation that they were related to the sale of her property. The documents were only in English, a language Plaintiff does not read or speak well. Plaintiff also claims that she was not provided with copies of the documents. Plaintiff brings causes of action for conversion, breach of fiduciary duty, civil damages for theft, and financial elder abuse.

On

June 25, 2026, Plaintiff substituted in Jun Ho's son, Sae Hyun Yang, and his daughter in law, Brooke Yang, for Does 4 and 5.

RULING: Granted.

Request for Judicial Notice:

Granted.

The Court takes judicial notice of the existence of documents filed with the California and North Carolina secretary of state, the Certificate of Limited Partnership produced in discovery, the deeds and property records, and other documents filed in this action. (Evid. Code, § 452, subs. (c), (d), (h).)

Evidentiary Objections: Sustained

in part.

Plaintiff's objections to Sae's declaration are overruled, except as to Objection No. 2, which is sustained on grounds of improper legal conclusion.

Plaintiff's objections to Brooke's declaration are overruled, except as to Objection No. 2, which is sustained on grounds of improper legal conclusion.

Specially Appearing Defendants'

objections to the declaration of J. Douglas Kirk are overruled.

The Court does not rule on

Specially Appearing Defendants' objections to the declaration of Grace Choe because the declaration was not filed.

Specially Appearing Defendants Sae and Brooke move to quash service of summons arguing that the Court lacks personal jurisdiction over them because they are North Carolina residents and were not involved in the underlying real estate transaction. On the same basis, they also argue that the exercise of jurisdiction would be unreasonable. Plaintiff opposes the motion, maintaining that Sae purposefully availed himself of California through solicitation of funds from his father and Brooke through her incorporation of a North Carolina corporation, Yang Legacy Holdings, Inc., that received such funds and her individual receipt of Zelle transfers. Plaintiff further contends that the exercise of jurisdiction here is fair and reasonable. Alternatively, Plaintiff requests a continuance for the purpose of conducting jurisdictional discovery as to Brooke. Because Plaintiff fails to establish that Sae and Brooke purposefully availed themselves of California, Specially Appearing Defendants' motion is granted.

"When

a defendant moves to quash service of process

on jurisdictional grounds, the plaintiff has the initial burden of

demonstrating facts justifying the exercise

of jurisdiction. (Citation.) Once facts showing minimum contacts with

the forum state are established, however, it becomes the defendant's burden to

demonstrate that the exercise of jurisdiction would be unreasonable.

(Citation.) When there is conflicting evidence, the trial court's factual determinations are not disturbed on appeal if supported by substantial

evidence. (Citation.) When no conflict in the evidence exists, however,

the question of jurisdiction is purely one of law and the reviewing

court engages in an independent review of the record." (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 449; Shisler v. Sanfer Sports Cars,

Inc. (2006) 146 Cal.App.4th 1254, 1258-59.)

Personal

jurisdiction is either general or specific. (Pavlovich v. Superior Court

(2002) 29 Cal.4th 262, 268-69.) Where, as here, specific jurisdiction is at

issue, courts consider the "relationship among the defendant, the forum, and

the litigation.” (Id. at p. 269.) Specific jurisdiction over a nonresident defendant may be exercised only if: (1) “the defendant has purposefully availed himself or herself of forum benefits”; (2) “the ‘controversy is related to or “arises out of” [the] defendant’s contacts with the forum’”; and (3) “the assertion of personal jurisdiction would comport with ‘fair play and substantial justice.’” (Ibid.)

For

tort claims, purposeful availment is analyzed using the “effects test,” which “requires intentional conduct expressly aimed at or targeting the forum state in addition to the defendant’s knowledge that his intentional conduct would cause harm in the forum.” (Pavlovich, supra, 29 Cal.4th at p. 271.) “[T]he plaintiff cannot be the only link between the defendant and the forum. Rather, it is the defendant’s conduct that must form the necessary connection with the forum State that is the basis for its jurisdiction over him.” (Walden v. Fiore (2014) 571 U.S. 277, 285.)

Plaintiff

has not established that Sae and Brooke purposefully availed themselves of California. Sae and Brooke both deny any involvement in the underlying real estate sale and state that they were unaware that the funds received from Jun Ho were the subject of any dispute or were wrongfully obtained. [Sae Decl. ¶¶ 8, 10; Brooke Decl. ¶¶ 8, 10.] While Jun Ho testified in his deposition that he sent money to his son based on his financial difficulties and marriage and that Sae instructed a certain payment be made to Yang Legacy Holdings, this does not show Sae’s knowledge that any request for money would cause harm in California. [Kirk Decl. ¶ 2, Ex. 2: Jun Ho Depo. Vol. 2, pp. 159:10-162:20, 182:21-22, 196:12-15, 197:1-10.] Sae’s mere position as CFO for The Christian Herald is insufficient to infer such knowledge on Sae’s behalf, especially considering that Jun Ho testified that Sae was given that position as a “blessing” and “did not carry out as a Chief Financial Officer.” [Id. ¶ 1, Ex. 1: Jun Ho Depo. Vol. 1, pp. 86:8-15, 88:14-16.] Jun Ho similarly listed his two other children, one of whom was only 13 years old at the time, as Officers and Vice Presidents as a blessing. [Gans Decl. ¶ 11, Ex. E, pp. 90:8-91:13.] Plaintiff likewise presents no evidence of knowledge on Brooke’s part and the mere receipt of Zelle transfers and the direction of \$50,000 to Yang Legacy Holdings are insufficient to infer such knowledge. Specially Appearing Defendants’ motion is therefore granted.

The

Court declines Plaintiff's request for a continuance to conduct jurisdictional discovery as to Brooke. Plaintiff does not explain how "discovery is likely to lead to the production of evidence of facts establishing jurisdiction." (In re Automobile Antitrust Cases I & II (2005) 135 Cal.App.4th 100, 127.) Plaintiff has had the ability to obtain from Jun Ho communications between himself and Sae and Brooke.

Service
of summons upon Specially Appearing Defendants is quashed.

The
action is dismissed without prejudice as to Specially Appearing Defendants.
(Code Civ. Proc., § 581, subd. (h).)

Specially
Appearing Defendants to give notice.

Dept.
617

Date:
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Case
#: 26STCV01163

Trial
Date: 11-30-26

MOTION FOR OSC RE: CONTEMPT

MOVING
PARTY: Plaintiff, Kae-soon Choe

RESPONDING
PARTY: Defendant, Jun Ho Yang

RELIEF
REQUESTED

Motion

for OSC re: Contempt

SUMMARY
OF ACTION

Plaintiff

Kae-soon Choe sued her pastor, Defendant Jun Ho Yang, alleging that Yang used her confidence in him to his own advantage. Plaintiff claims that in helping her sell her apartment, Yang diverted \$6.4 million of the net proceeds to his non-profit, Defendant The Christian Herald, Inc. Plaintiff alleges that she signed numerous documents presented by Yang based on his representation that they were related to the sale of her property. The documents were only in English, a language Plaintiff does not read or speak well. Plaintiff also claims that she was not provided with copies of the documents. Plaintiff brings causes of action for conversion, breach of fiduciary duty, civil damages for theft, and financial elder abuse.

On

June 25, 2026, Plaintiff substituted in Jun Ho's son, Sae Hyun Yang, and his daughter in law, Brooke Yang, for Does 4 and 5.

RULING: Granted.

Evidentiary

Objections: Overruled.

The

Court does not rule on Plaintiff's objections to Jun Ho's evidence as the evidence is irrelevant to disposition of the motion.

Plaintiff moves for an issuance of an order to show cause re: contempt as to Defendant Jun Ho, alleging 29 violations of the Court's TPO prohibiting him from transferring or disposing of his personal or real property. Jun Ho opposes the motion, contending that the refinancing of the Coastline Property cannot constitute a violation of the TPO because he does not own the property and that Plaintiff cannot prove his willful disobedience of the TPO. Jun Ho further challenges certain alleged violations as falling within the TPO's exemption for "necessities of life." Because Plaintiff sufficiently alleges each element of her contempt charge, Plaintiff's motion is granted and an OSC

re: Contempt is set for a date and time to be determined at the hearing.

A court has “inherent power to punish contempts of court.” (In re M.R. (2013) 220 Cal.App.4th 49, 57.) Where, as here, an alleged act of contempt is committed outside “the immediate view and presence of the court” (i.e., indirect contempt), “an affidavit must be presented to the court setting forth the facts constituting the contempt.” (Id. at p. 57.) The affidavit must state facts showing: “(1) the making of the order; (2) knowledge of the order; (3) ability of the respondent to render compliance; (4) willful disobedience of the order.” (Bd. of Supervisors v. Superior Court (1995) 33 Cal.App.4th 1724, 1736.) “After notice to the opposing party’s lawyer, the court (if satisfied with the sufficiency of the affidavit) must sign an order to show cause re contempt in which the date and time for a hearing are set forth.” (Cedars-Sinai Imaging Medical Group v. Superior Court (2000) 83 Cal.App.4th 1281, 1286.) “Unless the citee has concealed himself from the court, he must be personally served with the affidavit and the order to show cause; otherwise, the court lacks jurisdiction to proceed.” (Id. at pp. 1286-87.)

Plaintiff’s affidavit makes the requisite showing. The alleged contempt is Jun Ho’s 29 violations of the Court’s TPO, which prohibited him from “hiding, secreting, concealing, hypothecating, transferring, selling, disposing of, spending, or otherwise encumbering any of his personal or real property, except for necessities of life.” [Kirk Decl. ¶ 3, Ex. 4, p. 2.] Plaintiff itemizes the violations, which consist of transfers from Jun Ho’s alleged personal JPMorgan Chase Bank account and the refinancing of the Coastline Property. [Id. ¶¶ 13-15, Ex. 1.] The Coastline Property is subject to the TPO. [Id. ¶ 3, Ex. 4, p. 3.] Jun Ho had knowledge of the order because it was personally served on him at his home and he acknowledged in his deposition that he received it. [Id. ¶¶ 5, 7.] Jun Ho had the ability to comply because the order merely required him to not take certain action as to his property and he confirmed each of the transactions in his deposition. [Id. ¶¶ 13-15.] Plaintiff alleges the violations were willful because Jun Ho “ignored” the TPO despite acknowledging that he understood it and confirmed the transactions. [Id. ¶¶ 7, 11, 13-15.] Plaintiff thus sufficiently alleges the elements of her contempt charge. Whether Plaintiff can prove certain violations or Jun Ho’s willful disobedience of the order is not proper for consideration on the motion to set the OSC. (See Mery v. Superior Court (1937) 9 Cal.2d 379, 380 [“The settled rule is that an affidavit charging contempt is like a complaint in a criminal case and

must charge facts which show that a contempt has been committed”].)

Jun Ho is ordered to show cause why he should not be held in contempt for the alleged 29 violations of the TPO, at a date and time to be determined at the hearing.

Plaintiff to personally serve her affidavit and the order to show cause on Jun Ho.